Revision Date:
09/01/20

Background:
Employment Services (ES) participants have the right to dispute any program requirement or assignment they believe to be in violation of, or inconsistent with, state law and regulations governing the ES program.

Purpose:
The purpose of this material is to update policies for ES Grievances by requiring a review by ES Contractors and Eligibility Operations, instead of the Appeals section, and creating a Processing Guide.

Policy:
Complaint Resolution
When possible, ES complaints regarding regulations and/or processes should first be handled at the level of the Employment Case Manager (ECM) and ECM Supervisor. This also applies to other ES programs, such as Child Care and Cal-Learn. When the complaint cannot be resolved on an informal basis, the ECM and ECM Supervisor will inform participants of their right to file a formal grievance or request a state hearing.

State hearings are offered as an alternative to the formal grievance process or to appeal the outcome of a formal grievance. Policies and Procedures related to state hearings are found in the Eligibility Policy and Procedure Guide.

ES Grievance Process
The formal ES Grievance Process is offered as a method to determine whether a program requirement or assignment is in violation of the ES plan or is otherwise inconsistent with ES program requirements. ES participants are required to participate in assigned ES activities during the Grievance process and are entitled to supportive services to enable participation.

Individuals who fail to participate during the ES Grievance process, or any subsequent appeal, are subject to sanction pending the outcome of the process if they fail to participate as required.

The ES Grievance Process cannot be used:
- To appeal the outcome of a state hearing or the results of an ES Assessment/Reassessment. Individuals disputing the outcome of an ES Assessment/Reassessment are referred for a Third Party Assessment (CPG 10-005.G)
- For individuals who have failed to successfully resolve an instance of noncompliance and are deemed sanctioned. Sanctioned individuals may request a state hearing to appeal a program requirement or assignment

Procedure:
Processing Guide 10-030.H.1

References:
MPP 42-700, 42-721, 42-750

Sunset Date:
This policy will be reviewed for continuance by 09/30/2023

Approval for Release:



Rick Wanne, Director
Eligibility Operations